
Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of the Valley of Ernzt

1/10

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of the Valley of Ernzt
Deliberation no. 12FR/2023 of July 24, 2023

The National Commission for Data Protection sitting in a restricted formation composed of Ms. Tine A. Larsen, Chair, and Messrs. Thierry Lallemand and Marc Lemmer, Commissioners;
Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;
Having regard to the law of August 1, 2018 on the organization of the National Commission for Data Protection and the general regime on data protection, in particular its Article 41;
Having regard to the internal rules of the National Commission for Data Protection adopted by decision no. 3AD/2020 dated January 22, 2020, in particular its Article 10 point 2;
Having regard to the regulation of the National Commission for Data Protection concerning the investigation procedure adopted by decision no. 4AD/2020 dated January 22, 2020, in particular its Article 9;
Considering the following:

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of the Valley of Ernzt

2/10

I. Facts and Procedure

During its deliberation session on December 9, 2022, the National Commission for Data Protection sitting in plenary formation (hereinafter: the “Plenary Formation”) decided to open an investigation with the Municipal Administration of the Valley of Ernzt, located at 18, rue de Larochette, L-7661 Medernach (hereinafter the “controlled”), based on Article 38 of the law of August 1, 2018 on the organization of the National Commission for Data Protection and the general regime on data protection (hereinafter: the “law of August 1, 2018”) and to appoint Mr. Alain Herrmann as the head of the investigation.

The said decision specified that the investigation conducted by the National Commission for Data Protection (hereinafter: the “CNPd” or the “National Commission”) aimed to verify the application and compliance with Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: the “GDPR”) and the law of August 1, 2018 and legal texts providing specific provisions regarding the protection of personal data and more specifically the application and compliance with Articles 37.1. a) and 37.7 of the GDPR. The investigation specifically aimed to verify compliance with the obligation to appoint a data protection officer (hereinafter: “DPO”) and to communicate the contact details to the supervisory authority. It followed a general verification that the CNPD had conducted with all Luxembourg municipalities during the summer of 2022.

The controlled was informed of the opening of the investigation against it by letter from the head of the

investigation dated February 3, 2023. In this letter, the head of the investigation requested the controlled "to kindly take note of the initial findings below:

By letter dated August 11, 2022, the Chair of the CNPD reminded the Mayor of his obligation to appoint a data protection officer (hereinafter the "DPO"), as well as his obligation to notify the CNPD of this appointment (DOCUMENT 1).

1 Deliberation No. [...] of December 9, 2022 of the National Commission for Data Protection concerning the opening of an investigation mission with the Municipal Administration of the Valley of Ernz.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of the Valley of Ernz

3/10

In the absence of a response from the Mayor, the President of the CNPD sent him a reminder dated September 23, 2022 (DOCUMENT 2).

As of the date of this letter, and after consulting the register of data protection delegates, the investigating officers did not identify any designation of a DPO for your municipality.

The controlled party responded to the opening letter of investigation by email on February 7, 2023. At the end of its investigation, the head of the investigation notified the controlled party on April 17, 2023, of a communication of grievances detailing the breach he considered constituted in this case with respect to the requirements prescribed by Article 37.1.a) of the GDPR (obligation to designate a DPO).

The head of the investigation proposed to the National Commission sitting in a restricted formation (hereinafter: the "Restricted Formation") to adopt a corrective measure.

The opportunity to submit written observations on the communication of grievances was offered to the controlled party. The latter did not provide any observations to the head of the investigation.

The President of the Restricted Formation informed the controlled party by letter dated May 23, 2023, that their case would be included in the session of the Restricted Formation on July 11, 2023, and that they were offered the opportunity to be heard. By email dated June 28, 2023, the controlled party confirmed their attendance at the said session.

During this session, the head of the investigation and the controlled party, represented by [...] presented their oral observations in support of their written observations and answered questions posed by the Restricted Formation. The controlled party had the floor last.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of the Valley of Ernz

4/10

II. In Law

II.1. On the grounds for the decision

On the breach related to the obligation to designate a DPO and to communicate their contact details to the CNPD

1. On the principles

In accordance with Article 37.1.a) of the GDPR, any data controller or processor must designate a DPO if the "processing is carried out by a public authority or body, except for courts acting in their judicial capacity."

Based on Article 37.7 of the GDPR, any data controller or processor is also obliged to communicate the contact details of the DPO to the supervisory authority, which in this case is the CNPD.

In its guidelines regarding DPOs, the Article 29 Working Party specified the relevant provisions of the

GDPR in this area to assist data controllers and processors in complying with the legislation, as well as to support DPOs in their role.

It should be noted that the European Data Protection Board, which succeeded the Article 29 Working Party on May 25, 2018, has adopted and reapproved the documents adopted by the said Working Party between May 25, 2016, and May 25, 2018, including the aforementioned guidelines.

2. In this case

The head of the investigation noted in his communication of grievances that "at the date of the opening of the investigation, and after consulting the register of data protection delegates, there was no DPO designated for your municipality."

2 The guidelines regarding DPOs were adopted by the "Article 29" Working Party on December 13, 2016. The revised version (WP 243 rev. 01) was adopted on April 5, 2017.

3 See decision Endorsement 1/2018 of the EDPB of May 25, 2018, available at:

https://edpb.europa.eu/sites/edpb/files/files/news/endorsement_of_wp29_documents_en_0.pdf.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of the Valley of Ernzt

5/10

of the data, the investigating officers did not identify the designation of a DPO for the Municipal Administration of the Valley of Ernzt." Furthermore, it was noted that "the investigation reveals that the Municipal Administration of the Valley of Ernzt decided to designate the [Government Commission for Data Protection with the State, hereinafter: the "GCDP")] as DPO by resolution of its College of Aldermen dated October 5, 2022 (DOCUMENT 5), that is, before the opening of the investigation. However, after reviewing the Collaboration Agreement of the Municipal Administration of the Valley of Ernzt with the GCDP (DOCUMENT 6), it appears that the agreement only came into effect and produced its effects from the date of its signature, namely March 3, 2023, thus after the opening of the investigation. It is therefore confirmed that, in fact, the Municipal Administration of the Valley of Ernzt did not have a DPO at the date of the opening of the investigation."

Consequently, it was concluded that "the conditions of Article 37, paragraph (1) point a) of the GDPR were not respected."⁴

The Restricted Formation wishes to emphasize first that the entity under investigation is a Luxembourg municipal administration and, as such, a public body required to have designated a DPO no later than May 25, 2018, the date of application of the GDPR.

It then notes that the entity under investigation only responded on February 7, 2023, to the letter from the head of the investigation dated February 3, 2023, informing it of the opening of the investigation against it. Attached to this letter of February 7, 2023, was an excerpt from the minutes of the deliberations of the College of Aldermen of the entity under investigation concerning the meeting of October 5, 2022, during which it was decided to designate the GCDP as DPO.

However, said excerpt was not a copy of the original resolution, but a copy signed "for true copy" on February 6, 2023, by the Mayor and the Secretary of the entity under investigation. Consequently, the head of the investigation requested by email on March 8, 2023, to obtain a copy of the original excerpt dated and signed, which the entity under investigation transmitted to him on March 22, 2023.

4 Communication of grievances, points 16 to 18.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of the Valley of Ernzt

6/10

Furthermore, the Restricted Formation notes that the entity under investigation had sent by mail the

DPO declaration form to the CNPD on February 17, 2023, signed and dated February 10, 2023.⁵

Finally, by email dated April 11, 2023, the investigators requested the entity under investigation to send a copy of the Collaboration Agreement with the GCDP (hereinafter the “Agreement”), which they received by email on April 13, 2023.⁶ It appears from said Agreement that the designation of the DPO only became effective on the date of its signature, that is, March 3, 2023.

The Restricted Formation therefore notes that, even though the entity under investigation had already decided during the deliberation of the College of Aldermen on October 5, 2022, to designate the GCDP as DPO, this designation only became effective on March 3, 2023, the date of signing the Agreement with the GCDP. During the session of the Restricted Formation on July 11, 2023, the entity under investigation indeed confirmed the aforementioned facts and apologized for the delay in the designation of their DPO.

It can therefore only agree with the finding of the head of the investigation that at the date of the opening of the investigation, namely December 9, 2022, the entity under investigation had not yet designated a DPO, despite the reminder letters from the CNPD dated August 11, 2022, and September 23, 2022.

In light of the above, the Restricted Formation concludes that at the beginning of the investigation, the entity under investigation failed to fulfill its obligation arising from Article 37.1. a) of the GDPR.

Furthermore, the Restricted Formation notes that at the date of the opening of the investigation, the entity under investigation had not communicated the contact details of its DPO to the CNPD in accordance with Article 37.7 of the GDPR. Therefore, as the compliance check of said article was included in the scope of the investigation in question (cf. point 2 of this decision), the Restricted Formation considers that the entity under investigation also failed to fulfill its obligation arising from Article 37.7 of the GDPR.

5 See document 5 attached to the communication of grievances.

6 See document 6 attached to the communication of grievances.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of the Valley of Ernz

7/10

II. 2. On corrective measures

1. On the principles

In accordance with Article 12 of the law of August 1, 2018, the National Commission has the powers provided for in Article 58.2 of the GDPR:

- “a) warn a data controller or a processor that the intended processing operations are likely to violate the provisions of this regulation;
- b) reprimand a data controller or a processor when the processing operations have resulted in a violation of the provisions of this regulation;
- c) order the data controller or processor to comply with requests made by the data subject in order to exercise their rights under this regulation;
- d) order the data controller or processor to bring the processing operations into compliance with the provisions of this regulation, where appropriate, specifically and within a determined timeframe;
- e) order the data controller to communicate a personal data breach to the data subject;
- f) impose a temporary or permanent limitation, including a prohibition, on processing;
- g) order the rectification or erasure of personal data or the restriction of processing in accordance with Articles 16, 17, and 18 and the notification of these measures to the recipients to whom the personal data have been disclosed in accordance with Article 17, paragraph 2, and Article 19;
- h) withdraw a certification or order the certification body to withdraw a certification issued under

Articles 42 and 43, or order the certification body not to issue a certification if the applicable requirements for certification are not or are no longer met;

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of the Valley of Ernz

8/10

- i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the specific characteristics of each case;
- j) order the suspension of data flows addressed to a recipient located in a third country or to an international organization.”

In accordance with Article 48 of the law of August 1, 2018, the CNPD may impose administrative fines as provided for in Article 83 of the GDPR, except against the State or municipalities.

The Restricted Formation wishes to clarify that the facts taken into account in this decision are those established at the beginning of the investigation. Any subsequent changes regarding the data processing subject to the investigation, even if they allow for full or partial compliance to be established, do not retroactively annul an established breach.

Nevertheless, the steps taken by the controlled party to comply with the GDPR during the investigation procedure or to remedy the breaches identified by the head of the investigation in the communication of grievances are taken into account by the Restricted Formation in the context of any corrective measures to be imposed.

2. In this case

In the communication of grievances, the head of the investigation “proposes to the Restricted Formation to issue a reprimand against the Controlled party stating that it must comply with the applicable legislation regarding the appointment of a data protection officer.” 7

Regarding the corrective measure proposed by the head of the investigation and by reference to point 27 of this decision, the Restricted Formation takes into account the steps taken by the controlled party to comply with the provisions of Articles 37.1.a) and 37.7 of the GDPR, as detailed in its email of February 7, 2023, and its letter of February 17, 2023.

7 Communication of grievances, point 25.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of the Valley of Ernz

9/10

Particularly, it notes that on February 17, 2023, the controlled party sent to the CNPD the declaration form of the DPO to the CNPD, signed and dated February 10, 2023, designating the CGPD as DPO. Furthermore, by email dated April 13, 2023, the controlled party sent the head of the investigation a copy of the Agreement signed on March 3, 2023, with the CGPD.

Nevertheless, at the time of the opening of the investigation, the controlled party had neither designated a DPO nor communicated their contact details to the CNPD.

For these reasons, the Restricted Formation considers it necessary to impose the corrective measure proposed by the head of the investigation in this regard, as reiterated in point 27 of this decision, and to reprimand the controlled party for violating Articles 37.1.a) and 37.7 of the GDPR.

Finally, pursuant to Article 52 of the law of August 1, 2018, the “CNPD may order, at the expense of the sanctioned person, the full or partial publication of its decisions, except for decisions relating to the imposition of fines, and subject to:

- 1° the remedies against the decision being exhausted; and
- 2° the publication not posing a disproportionate harm to the parties involved.”

The Restricted Formation considers that the publication of this decision does not pose a disproportionate harm to the controlled party, but is justified in light of the public interest in knowing the results of the general verification that the CNPD conducted with all Luxembourg municipalities during the summer of 2022.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of the Valley of Ernzt

10/10

In light of the preceding developments, the National Commission sitting in a restricted formation, after deliberation, decides:

- to uphold the violations of Articles 37.1.a) and 37.7 of the GDPR;
- to issue a reprimand against the Municipal Administration of the Valley of Ernzt for violating Articles 37.1.a) and 37.7 of the GDPR;
- to publish the decision on the National Commission's website as soon as the remedies are exhausted.

Belvaux, July 24, 2023,

The National Commission for Data Protection sitting in a restricted formation,

Tine A. Larsen

Thierry Lallemand

Marc Lemmer

President

Commissioner

Commissioner

Indication of remedies

This administrative decision may be subject to an appeal for reform within three months following its notification. This appeal must be brought before the administrative court and must necessarily be introduced through a lawyer at the Court of one of the Bar Associations.